

HEADNOTE

“For direct infringement of a product claim, it is decisive whether the attacked embodiment is objectively capable, by virtue of its nature and fitness for use, of satisfying the features of the patent claim.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 3 402 420 B1

AUTOGRAFTING TOOL WITH
ENHANCED FLUTE PROFILE AND
METHODS OF USE

KEYWORDS

Product claim

Infringement

Active standing

Exclusive licensee

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to an autografting tool with enhanced flute profile and methods of use. According to the headnotes of the decision, when assessing direct infringement of a product claim, courts must determine whether the accused product is objectively capable of performing all the features required by the patent claim based on its design and intended function.